

SUPERIOR COURT OF CALIFORNIA
COUNTY OF VENTURA

Tentative Ruling

2026CUMC062631: BRENDEN DENNIS ROLLS vs CITIBANK N.A.

09/01/2026 in Department 21

Motion to Set Aside/Vacate Default

Tentative Rulings. Parties and counsel appearing for oral argument should address the tentative decision. Parties may submit on the tentative decision by email, with a copy to all other parties in the matter, to courtroom21@ventura.courts.ca.gov before 8:00 a.m. on the day set for the hearing, with a subject line that includes “SUBMISSION ON TENTATIVE”, Case Number, Title and Party. If fewer than all parties submit on the tentative, the hearing will proceed, and the tentative ruling is subject to change. The clerk cannot advise if you should still appear or not. The decision of whether to appear for a hearing is to be made by the parties and their counsel. (Dept. 21 Rules & Procedures, p. 4, § II.I.)

The following is a statement of the Court’s tentative ruling. The Court may adopt, modify or reject the tentative ruling after hearing. The tentative ruling has no legal effect unless and until adopted by the Court.

Motion: Defendant Citibank’s Motion to Set Aside and Vacate Default (*Opposed*)

Tentative Ruling:

The Court intends to rule as follows:

Defendant Citibank’s motion to set aside and vacate default is GRANTED. (Code Civ. Proc., § 416.10, subd. (c).)

Defendant shall file a responsive pleading within 20 days.

Notice to be given within two (2) days by counsel for Defendant.

Discussion:

Service on a corporation may only be accomplished by serving some individual as its representative. A corporation has certain executive or managerial officers, and it may also have an agent expressly designated for the purpose of receiving service. (See Edmon & Karnow, Cal. Practice Guide: Civil Procedure Before Trial (The Rutter Group 2026) ¶ 4:135 et seq.) Code of Civil Procedure section 416.10 specifies the officers or agents to whom delivery of the summons and complaint may be made. Summon may be served on a corporation: (a) to the person designated as agent for service of process; (b) to the president, chief executive officer, or other head of the corporation, a vice president, a secretary or assistant secretary, a treasurer or assistant treasurer, a controller or chief financial officer, a general manager, or a person authorized by the corporation to receive service of process; **and (c) if the corporation is a bank, to a cashier or assistant cashier or to a person specified in subdivision (a) or (b).**

The authority to accept service may be actual or implied (ostensible). Ostensible authority is such as a principal, intentionally or by want of ordinary care, causes or allows a third person to believe the agent to possess. (Civ. Code, § 2317.) Thus, where the corporation holds a certain person out as one of its principal officers, that person may be held to have ostensible authority to receive service of summons on the corporation's behalf even if such person actually held no office at the time. (*Pasadena Medi-Center Assocs. v. Superior Court* (1973) 9 Cal.3d 773, 777.) As the party with burden of establishing valid service of process when it is contested by defendant, plaintiff bears the burden of showing the party served was defendant's ostensible agent for service of process. (*Lebel v. Mai* (2012) 210 Cal.App.4th 1154, 1163.)

Here, the proof of service for the summons states that it was served on Brandon Shiffer “Personal Banker.” Defendant states that individuals with the title Personal Banker at the bank are generally not authorized to accept service on Defendant’s behalf, and that Shiffer was not expressly authorized to accept service on behalf of Defendant on April 15, 2026. Given that the proof of service clearly identifies Shiffer as a “Personal Banker,” and not a person with a position/title that is specified in section 416.10, the proof of service on its face fails to show that service was proper.

Plaintiff’s argument that the Sheriff’s return refutes improper service lacks merit. The filing of a proof of service declaration creates a rebuttable presumption that the service was proper, but only if the service declaration “complies with the statutory requirements regarding such proofs.” (*Dill v. Berquist Construction Co.* (1994) 24 Cal.App.4th 1426, 1441–1442.) Here, the proof of service on its face fails to show that a person authorized by § 416.10(c) to receive service on Defendant’s behalf was served. That Plaintiff allegedly gave proper instructions to the process server regarding whom to serve does not mean that the actual service was proper. Accordingly, the proof of service does not create a rebuttable presumption of proper service. But even assuming *arguendo* that it did, Defendant rebuts the presumption of valid service because it submits evidence that Shiffer, as a personal banker, was not a person authorized to accept service on Defendant’s behalf.

Nor has Plaintiff shown that Shiffer had ostensible authority to accept service. Plaintiff presents no evidence that Defendant held Shiffer out to him or the process server as someone who has authority to accept service for the bank. Accordingly, the Court will grant relief from default under section 416.10(c). (*Ellard v. Conway* (2001) 94 Cal.App.4th 540, 544 [court may set aside default judgment due to improper service]; *Dill, supra*, 24 Cal.App.4th at p. 1444.)

Alternatively, the Court also grants mandatory relief pursuant to CCP § 473(b). John Armstrong’s declaration states that he is the Senior Lead Counsel for Defendant (its in-house counsel); that he became aware of this action on April 22, 2026; that on May 4, 2026, he prepared documents to be sent to outside counsel in anticipation of outside counsel being retained on the case; that on May 4, he intended to inquire about outside counsel’s availability re this matter but mistakenly did not; that on May 19, 2026, Armstrong realized he had never made the inquiry and no counsel had been retained to represent Defendant; and that he immediately emailed the outside firm to retain the firm, which agreed to the representation. The foregoing

establishes that he is an attorney working for Defendant and that his error caused Defendant to fail to file a timely answer (due by May 15, 2026).

Discretionary relief under § 473(b) appears appropriate as well. Armstrong's declaration states that he mistakenly believed that he had referred this case to outside counsel and that upon realizing his mistake, he took immediate action to retain outside counsel. These facts appear sufficient to show excusable neglect. (Cf. *Comunidad en Accion v. Los Angeles City Council* (2013) 219 Cal.App.4th 423, 435 [missing deadline to file claim due to calendaring mistake was excusable neglect].)

The motion was promptly filed (37 days after default), includes the proposed answer, and seeks relief from a clerk's default that would lead to a default judgment.

Accordingly:

1. The default entered against Defendant Citibank, N.A., is vacated.
2. Plaintiff's pending request for entry of default judgment against Defendant is denied as moot.
3. Defendant shall file and serve its proposed answer within 10 calendar days.

The Court does not reach Defendant's alternative request for equitable relief.

Counsel for Defendant to give notice.